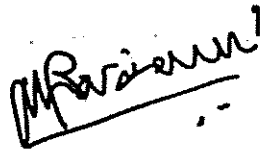
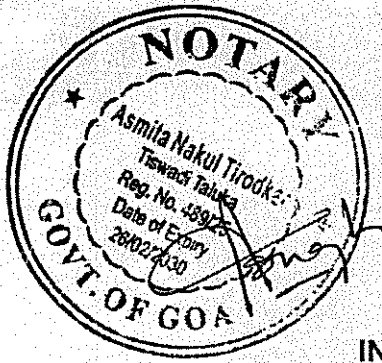


13. In view of the above, I allow application dated 15.02.2025 by modifying the minutes of proceedings dated 26.08.2024 and direct that the initial deposit of cost and the fees pertaining to the arbitration proceedings shall be borne equally by parties to the arbitration agreement, i.e. Articles of Association dated 01.04.2013. it is made clear that each of the parties to the said tripartite agreement shall deposit an amount of Rs. 5 Lakhs. Respondents 1, 2 and 3 who have deposited Rs. 6 Lakhs in total, will be entitled to a refund of Rs. 1 lakh from the said initial deposit.



Place: Panaji – Goa.
Date: 08.06.2024

Sr. Adv. Nitin N. N. P. Sardesai
Sole Arbitrator



Riva
22/03/25

BEFORE THE HON'BLE SOLE ARBITRATOR MR. NITIN N. N.
SARDESSAI AT PANAJI GOA

IN THE MATTER OF ARBITRATION BETWEEN:

Mr. Vikram Shah

...CLAIMANT

vs.

Mr. Riva Trindade and 3 Ors

....RESPONDENTS

APPLICATION BY THE RESPONDENT NOS.
1, 2, AND 3 UNDER SECTION 17 OF THE
ARBITRATION AND CONCILIATION ACT,
1996.

MAY IT PLEASE YOUR LORDSHIP:

The Respondent Nos. 1, 2 and 3 above named most respectfully beg
to state and submit as under: -

1. The dispute raised in the present Arbitration Proceedings arise
from the Articles of Association dated 01-04-2013 entered into
by the Claimant, Pascoal Trindade (predecessor in title of the

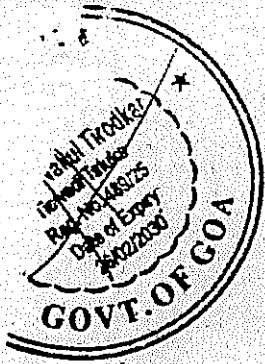
22/03/25



Respondent Nos. 1, 2, and 3); and the Respondent No. 4 so as to develop the properties specified therein by pooling their resources to their greater common advantage.

2. The Respondent Nos. 1, 2, and 3 have filed their Statement of Defense in the present proceedings and crave leave of this Hon'ble Tribunal to refer and rely on the contents of the same as if the same have been set out herein, verbatim for the purpose of the present Application.
3. In fact, Clause 28 and 29 of the Articles of Association dated 01-04-2013 expressly stipulate that legal heirs becoming members of the Association of Persons will inherit all the rights and liabilities of the deceased member and also the balance standing at the Capital and Current Accounts of the deceased member and also the share of profit and losses hitherto shared by the deceased member. And further that in the event of a member ceasing to be a member or in case of death of the member, his legal heirs shall be entitled to the balance standing at the Capital and Current Account as on

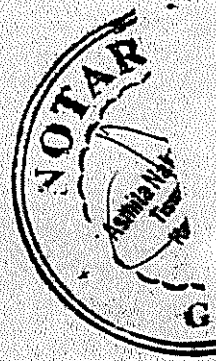
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such date, and that such amount due shall be paid without interest to the legal heirs of the deceased member within the expiration of the period of six months from the date of death.

4. It is stated and submitted that, although the Claimant and late Pascoal Trindade formed various commercial entities pursuant to which various projects have been undertaken since the years 1990, subsequent to the death of Pascoal Trindade on 17-01-2022, the Respondent Nos. 1, 2, and 3 have not been given access to the status and/or affairs of the business, so as to ascertain and/or know their entitlement in the said commercial entities including that formed pursuant to the Articles of Association dated 01-04-2013.

5. It is stated and submitted that subsequent to the death of late Pascoal Trindade on 17-01-2022, the Respondent No. 1 had a couple of meetings with the Claimant concerning the entitlement of the Respondent No. 1, 2, and 3, so as to understand, ascertain and/or know the entitlement of the Respondent Nos. 1, 2, and 3 in the Capital and Current



account as on the date of late Pascoal Trindade, and the shares in the properties.

6. As there was no positive response and/or disclosure coming forth, the Respondent No. 1 subsequent to the meeting with the Claimant on 28-02-2023 at the Bambolim Office, by a letter dated ~~18-03-2023~~ requested the Claimant to furnish copies of the documents and financial statements concerning the business and various companies and AOPs in which late Pascoal Trindade had investments, so as to enable the Respondent Nos. 1, 2, and 3 to understand and ascertain the financial status of various entities viz. Paramount Buildwell Construction Private Limited (Ocean Park Project and Emperor's Boulevard Project), Pravar Trade Invest Private Limited, Pastina Holiday Homes, and Shivam Holiday Homes.
7. Despite the request for the said balance sheets and profit and loss accounts, and the bank statements which were agreed to be provided by the Claimant to the Respondent No. 1 were not furnished and accordingly by the said letter dated 18-03-2023

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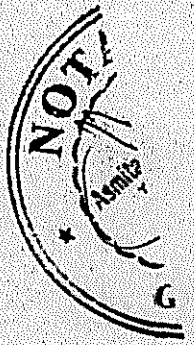


(Annexure R1 A at Page 59), addressed to the Claimant the request for the said documents and information was renewed.

8. In response to the said letter dated 18-03-2023, the Claimant far from furnishing the information and statements as agreed at the meeting dated 28-02-2023, insisted upon appointment of two mediators to conclude the matters with a requirement of a clear mandate to accept the award, which was virtually a demand, without even affording an opportunity to the Respondent No. 1 to ascertain and understand the status of the affairs concerning the business and various commercial entities for various projects undertaken by Late Pascoal Trindade with the Claimant. It is pertinent to point out that although in the said letter dated 30-03-2023 (Annexure R1 B at Page 60), the soft copies of the last audited balance sheets for the companies was stated to be forwarded on a pen drive, factually no such pen drive was enclosed with the said letter and/or furnished and/or handed over to the Respondent No. 1.

9. As a fact, in response to the said letter dated 30-03-2023 addressed to the Claimant, the Respondent No. 1 by letter

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dated 12-04-2023 (Annexure R1 C at Page 63), whilst expressing astonishment to the proposal for mediation, instead of furnishing the requested document/details, reiterated the request for audited accounts and bank statements, since inception to understand and comprehend the financial position of the Private Limited companies and the AOPs, more particularly since the same contained substantial and significant investments made by late Pascoal Trindade and pointed out that the same were very much valid and that the refusal/denial of the audited accounts and bank statements was not justified.

10. Faced with the said situation, by a letter dated 04-07-2023 (Annexure R1 D at Page 65) addressed to the Claimant the Respondent No. 1 expressed that the Claimant for reasons best known to the Claimant was avoiding disclosing the accounts and bank statements of the private limited companies and the AOPs, renewed and reiterated the request made in the earlier letter dated 18-03-2023 with a request to provide the audited accounts and bank statements so that things could move forward.

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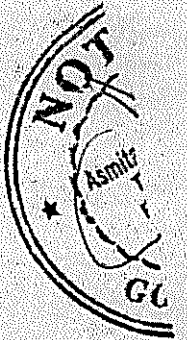


11. By a letter dated 14-07-2023 (Annexure R1 E at Page 68), addressed to the Respondent No. 1, the Claimant resisted the disclosure of the said statements on a specious plea of non-cooperation by the Respondent No. 1 and sought to claim difficulty to him and his family to safeguard/salvage the benefits in the event of continued non-cooperation of the Respondent No. 1.

12. It is stated and submitted that though under Clause 4 of the Articles of Association dated 01-04-2013, the Books of Accounts of the Association were to be closed on 31-03-2014 for the first time and thereafter the Books of Accounts were to be closed on 31st March every year, the same was apparently not effected for a fact that subsequent to the death of Pascoal Trindade who expired on 17-01-2022, and despite repeated requests by the Respondent Nos. 1, 2 and 3 to the Claimant to furnish details with regard to the closure of the Books of Accounts on 31-03-2014, the Claimant has for reasons unknown to these Respondents been completely averse to a fair disclosure of the Books of Accounts to the Respondent

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Nos. 1, 2 and 3, which has in fact been the root cause for the destruction of the otherwise cordial relations between the parties to the said Articles of Association dated 01-04-2013.



13. Though under Clause 8, Pascoal Trindade, by way of his share of contribution to the capital of the Association was stated to have introduced the properties bearing Survey No. 93/3 and 93/4 of the Village of Bambolim as his contribution to the capital of the Association, which properties were stated to be valued at Rs. 3,09,50,000/- (Rupees Three Crores Nine Lakhs Fifty Thousand Only) for which the Capital Account of Pascoal Trindade was to be credited by an amount of Rs. 1,23,01,250/- (Rupees One Crore Twenty Three Lakhs One Thousand Two Hundred and Fifty Only) and the balance amount of Rs. 1,86,48,750/- (Rupees One Crore Eighty Six Lakhs Forty Eight Thousand Seven Hundred and Fifty Only) was to be credited to the Current Account of Pascoal Trindade, and the said properties on being introduced in the Association have been stated to have ceased to be the personal properties of Pascoal Trindade and become properties of the Association, despite repeated requests the

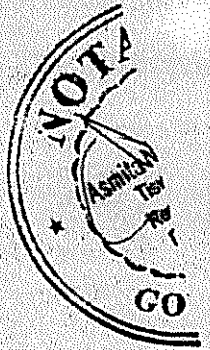
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Respondent Nos. 1, 2, and 3 have not been provided any details with regards to the balance standing in the Capital and Current Accounts of late Pascoal Trindade and also his share of profit and losses. Further, till date no amount has been paid to the Respondent Nos. 1, 2, and 3, which was otherwise required to be paid within the expiration of the period of six months from the date of death of late Pascoal Trindade.

14. It is stated and submitted that despite repeated requests to the Claimant, the details of the said account are being withheld by the Claimant, without any disclosure and/or transparency in that regard to the Respondent Nos. 1, 2, and 3, who are the son, widow, and daughter in law respectively of late Pascoal Trindade.

15. It is stated and submitted that despite timely, repeated, polite and earnest requests by the Respondent Nos. 1, 2, and 3 to the Claimant and the Respondent No. 4 with regard to the Profit and Loss Account in respect of the said Association, the Claimant as well as the Respondent No. 4 far from being cooperative and transparent in the working and/or dealings in



respect of the said properties have been secretive and uncooperative to the Respondent Nos. 1, 2 and 3, as a result of which the Respondent Nos. 1, 2, and 3, have been virtually left groping in the dark, as to the status of the affairs concerning the said Association of Persons, whereby despite being the legal heirs of late Pascoal Trindade, the Respondent Nos. 1, 2 and 3 have been virtually deprived of their entitlements of having a fair assessment of the business affairs of the Association and the properties, apart from there being absolutely no compliance of Clause 28 and 29 of the Articles of Association dated 01-04-2013.

16. Under Clause 22, the parties expressly agreed that the Bank Account or Bank Accounts of the Association at any time after formation of the Association would be operated jointly by all the three parties to the Articles of Association and that any modification of this clause could be made by unanimous resolution in writing by all the members of the association.

17. As recorded in Clause 24, proper books of accounts were agreed to be kept as per the accounting principles for

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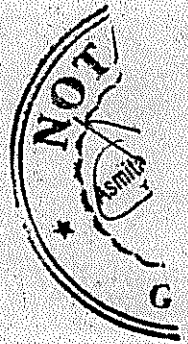


recording entries of all particulars of money, good, effects, belonging to or owing to or by the Association or paid, received, sold or purchased in the course of the activity of the Association including all such other transactions, matters and things relating to the activities of the said association.

18. In fact, under Clause 24, the said Books of Accounts together with all letters, papers, or writings concerning or belonging to the Association except those required to be kept at the bankers are required to be kept at the office of the Association and each of the members shall at all times have free access to and right to inspect and make copy of the same.

19. It is stated and submitted that the pleas of the Respondent Nos. 1, 2, and 3 have fallen on deaf ears, and despite the commencement of the present Arbitration Proceedings, the Claimant has not disclosed the Books of Account of the Association, Details of Bank Accounts and the details of operation of the bank accounts, the Profit and Loss Account, and the computation of the share of the members in the

assets of the Association, as such is in complete breach of the Articles of Association dated 01-04-2013.



20. To the dismay of the Respondent Nos. 1, 2 and 3 far from the entitlement of free access and right to inspect and make copies of the books of accounts, the Respondent Nos. 1, 2 and 3 have been denied and virtually deprived of the right of free access to inspection of the books of accounts despite repeated requests and polite reminders in that regard.

21. It is stated and submitted that the Respondent Nos. 1, 2, and 3 apprehend that the Claimant has been unwilling to furnish the said the Books of Account of the Association, Details of Bank Accounts and the details of operation of the bank accounts, the Profit and Loss Account, and the computation of the share of the members in the assets of the Association to the Respondent Nos. 1, 2, and 3 as the Claimant is appropriating and/or seeking to appropriate funds and/or monies which are otherwise due and payable to the Respondent No. 1, 2, and 3 upon the death of late Pascoal Trindade.

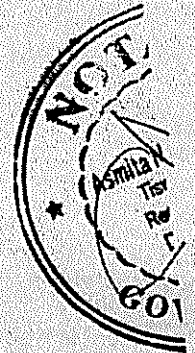
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22. The apprehension of the Respondent Nos. 1, 2, and 3 are in fact justified for a fact that in respect of an Agreement dated 17-09-2006, whereby the Claimant and late Pascoal Trindade had constituted an Association of Persons in the name and style of "Shivam Holiday Home" inter alia in respect of a plot of land admeasuring 610 sq. mtrs or thereabout, surveyed under Chalta No. 16 of PT Sheet No. 99 of the City Survey of Panaji, the Claimant has subsequent to the death of late Pascoal Trindade under a specious plea that the Respondent Nos. 1 and 2 herein have not taken active interest to resolve the various issues with respect to the business activities in various AOPs by and between late Pascoal Trindade and the Claimant has unilaterally by a Declaration of Dissolution sought to transfer all the assets and liabilities of the AOP to a new entity with only the Claimant as the surviving associate member of the AOP as the proprietor which action apart from being unilateral is in breach of the entitlement of the Respondent Nos. 1, 2, and 3 to the said business. Annexed hereto and marked as **ANNEXURE A** is the Declaration of Dissolution dated 07-07-2023.

B

23. It is stated and submitted that the Respondent Nos. 1, 2, and 3 are ready and willing and in fact interested in sorting out the disputes which have surfaced between the parties subsequent to the death of Late Pascoal Trindade on 17-01-2022 and it is in this pursuit that the Respondent Nos. 1, 2, and 3 in fact even proposed a global settlement in respect of all the properties which were the subject matter of the various commercial entities or various projects undertaken by the Claimant and Late Pascoal Trindade on mutual understanding and as is found recorded in the minutes of this Hon'ble Tribunal dated 14-09-2024, but however to the dismay of the Respondent Nos. 1, 2, and 3, the conduct of the Claimant has been one far from the expectation of the Respondent Nos. 1, 2, and 3 of being fair to the legal representatives of Late Pascoal Trindade, who has been a close business associate of the Claimant not only in respect of the Articles of Association dated 01-04-2013 but several commercial entities which were undertaken by the Claimant and Late Pascoal Trindade for various projects undertaken by them in the state of Goa on mutual understanding, whereby since the Claimant



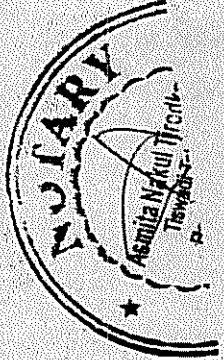
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was based out of Goa and the various projects and commercial entities comprised of properties in the state of Goa, late Pascoal Trindade was the business partner who was involved in the day to day management of the affairs of the Articles of Association having taken the burden, risks, and pressure of the business having put in his toil and hardwork in the daily operations of the partnership in consultation and ratification by the Claimant.

24. It is stated and submitted that the Respondent Nos. 1, 2, and 3 are therefore entitled for an interim measure of protection ordering/directing the Claimant to forthwith furnish to the Respondent Nos. 1, 2, and 3 the Books of Account of the Association, Details of Bank Accounts and the details of operation of the bank accounts, the Profit and Loss Account, and the computation of the share of the members in the assets of the Association.

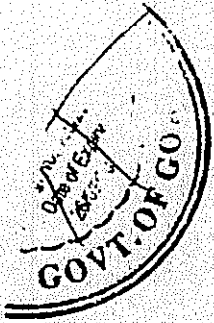
It is therefore **PRAYED:**

- 
- A circular notary seal is located in the upper right corner of the page. The word "NOTARY" is written in a semi-circle along the top edge. Inside the circle, there is a signature and the text "Asmita N. Kulkarni" and "New York, NY".
- i. That the Claimant be directed to furnish to the Respondent Nos. 1, 2, and 3 the Books of Account of the Association, Details of Bank Accounts and the details of operation of the bank accounts, the Profit and Loss Account, and the computation of the share of the members in the assets of the Association and comply with the terms of the Articles of Association dated 01-04-2013, so as to enable the Respondent Nos. 1, 2, and 3 to determine and compute their entitlements in the profits/losses of the Association, as well as the share of the Respondent Nos. 1, 2, and 3 in the assets of the Association and the funds and/or monies which are otherwise due and payable to the Respondent No. 1, 2, and 3 upon the death of late Pascoal Trindade.
 - ii. For any other order as this Hon'ble Tribunal deems fit in the facts and circumstances of the present case.
 - iii. For costs of the application.

PANAJI - GOA



A handwritten signature, possibly "R", is written below the text "PANAJI - GOA".



22-03-2024

RESPONDENT NOS. 1, 2, AND 3

R. A. Trindade
ADVOCATE FOR RESPONDENT NOS. 1, 2, AND 3

AFFIDAVIT

I, Riva Anthony Trindade, Son of Late Pascoal Trindade, 52 years of age, Indian National, Businessman, resident of House No. 21/23/A, P.O NIO, Dona Paula, Tiswadi-Ilhas Goa the Respondent No.1 herein do hereby on solemn affirmation beg to state and submit as under:-

1. I say that I am the Respondent No. 1 in the present proceedings and I am conversant with the facts of the present case.
2. I say that I have filed the accompanying Application for Interim Reliefs and I crave leave to refer and rely on the contents of

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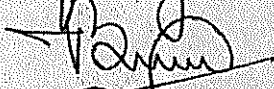
the same as if the same are set out herein verbatim for the purpose of the present affidavit.

3. I say that what has been stated by me at 1, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21(Part), 22, and 23 is based on facts true to my own knowledge and/or based on the records available with me and what has been stated by me at paras 2, 21(Part), and 24 are in the nature of inferences of fact and/or legal submissions based on legal advice which I believe to be true.

SOLEMNLY VERIFIED AT PANAJI
ON THIS 22ND DAY OF MARCH 2025

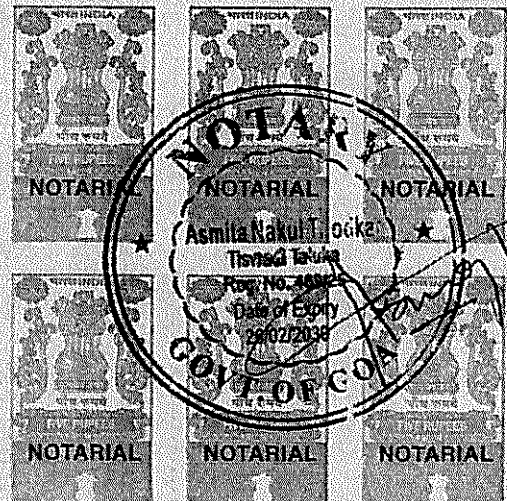

DEPONENT

Identified by me:


(Vledson L. Braganza)

Solemnly affirmed before me by
Shri/Smt. Riva Anthony Trindade
who has been identified before me
by Adv. Vledson L. Braganza
Whom I know
Reg. No. 059/2025 dt. 22/03/2025


Asmita N. Tiradkar
ADVOCATE & NOTARY
Tiswadi Taluka
(Govt of Goa)



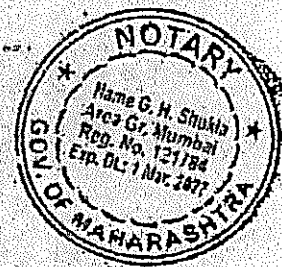


गोवा GOA

Serial No. 1925 Piece of Vendor, Panaji Date 26/6/23
Value of Stamp Paper Rs. 500/-
Name of Purchaser Shri. Vikram Chinubhai Shah
Residence of Vendor of Father
Purpose Transferring
Parties

814331

Sign of Stamp Vendor
Mangala N. Y. Kulkarni
License No. A/31/PV/18747-08



DECLARATION OF DISSOLUTION

I, Vikram Chinubhai Shah, age 72 years, Indian inhabitant, having PAN No. AAJPS2978N residing at 28, Capri, 9 Manav Mandir road, Walkeshwar, Mumbai - 400 006 do hereby solemnly declare and affirm as follows:

CERTIFIED TRUE COPY

H. B. NAMDARIAN (HARI)
Sindhi Sadheri Chawl,
157, Worli Koliwada,
Worli, Mumbai-400 025.



1. I, along with one Mr. Pascoal A. Trinidad (PAN NO. ADNPP5891L) formed an Association of Persons ("AOP") by entering into Association of Persons Agreement dated 17th September 2006 which was duly notarized under registration no. 127/2007 dated 05/01/2007 through notary Wilfred A. F. Boadita. The said AOP was allotted PAN AACAS6043C by the Income Tax Authorities. The AOP was named "Shivam Holiday Home" for conducting the purpose for which the AOP was constituted. The object of the AOP was acquiring, leasing, renting, developing and commercially exploiting immovable properties. Certified true copy of the said Association of Persons Agreement dated 17th September 2006 ("AOP Agreement") is annexed hereto as Annexure A.

2. In furtherance of the object of the AOP, the associate members, i.e. Mr. Pascoal A. Trinidad and myself, infused funds as required for acquiring properties.

3. By Deed of Sale and Conveyance dated 30th March 2007, duly registered under serial no. 1360/07 before the sub-registrar of Ilhas on 14/05/2007, entered between Mr. Jyoti Chhotatal Gandhi and Mrs. Bharti Mahesh Gandhi, both partner of M/s. Shamalshu Giridhari Co., therein referred to as Vendors of the One Part, and Mr. Vikram C. Shah and Mr. Pascoal A. Trinidad as associate members of AOP M/s. Shivam Holiday Home therein referred to as Purchasers, of the Other Part, purchased all that piece and parcel of land admeasuring 610 sq. meters or thereabouts, being Plot no. 5 (five) of the sub-division of property formed by the amalgamation

of two properties viz (1) 'Second Cunto Chinchicho' described in



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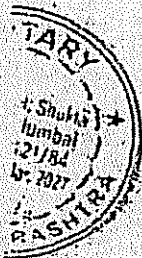
H. B. NAMDARIAN (IRANI)
Sindhi Sauchori Chawl,
157, Wink Kairwada,
Worli, Mumbai-400 025.



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the Land Registration Office of Ilhas Under No. 17082 of Book B-45, New and (2) 'Terceiro Cunto Chincheco' also known as Terceiro Cunto Chincheco Com Seu Alto De Area da propriedade. Baily Vally described in the Land Registration Office of Ilhas at Panji under no. 2671, Book B 30, Old, Surveyed under Chalta No. 16 of P.T. Sheet No. 99 of City Survey of Panji, with a bungalow or house standing thereon situated at Miramar/Santa Inez, within the limits of the Panji Municipal Corporation of Panji City, within registration of Sub-District of Ilhas, District of Goa (North-Goa) and State of Goa. The said property is more particularly described in First Schedule hereunder written. Certified true copy of the said Sale Deed is annexed hereto as Annexure - B.

4. By Deed of Sale dated 10th November 2020 duly registered under book no. 1 serial no. PNJ-1-1690-2020 on 17/11/2020 before sub registrar of Tiswadi, executed between Smt. Kishori Shyanisunder Sinari, therein referred to as Vendor of the One Part, and Shivam Holiday Home, therein referred to as Purchasers of the Other Part, the Purchaser i.e. AOP purchased Plot admeasuring 1655 sq. meters forming part of the land under Survey No. 11/1 of Bambolim Village of Tiswadi Taluka alongwith house. The said Property is more particularly described in Second Schedule hereunder written. Certified true copy of the said Sale Deed is annexed hereto as Annexure - C.

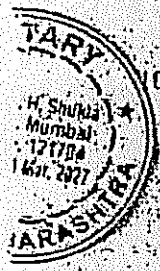


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H. B. NAMDARIAN (HANI)
Sindhi Saubhari Chawl,
157, Worli Koliwada,
Worli, Mumbai-400 025.



5. The AOP viz M/s. Shivam Holiday Home entered into and executed Development Agreement dated 16/07/2009 with one M/s. Premium Stock Invest Pvt. Ltd. now name change to Prive Reality Pvt. Ltd. for the construction and development of the said property and by virtue of the said Agreement the AOP became entitled as owners to 50% of the constructed area viz 50% undivided rights in the ground floor shop and premises on 3rd and 4th floor of the building constructed thereon on the said property by the said M/s. Prive Reality Pvt. Ltd. hereinafter referred to as the Said Premises. The said newly constructed building is known as Kamala House.
6. The AOP leased the said premises to various parties from time to time and details of the current lessees are set out in Third Schedule hereunder written.
7. The AOP as of the date of this Declaration has assets as listed in Fourth Schedule hereunder written.
8. Further, the AOP has liabilities / Assets as more particularly stated in the Balance sheet annexed hereto at Annexure - F.
9. Mr. Pascoal A. Trindade expired on 17/01/2022 unattested leaving behind him his wife Mrs. Albertine Trindade and his son Mr. Riva Trindade as his only surviving legal heirs.
10. As a result of the sudden demise of Mr. Pascoal A. Trindade, the AOP stands deemed dissolved in accordance with the provision of section 42 of Partnership Act 1932 as amended from time to time.

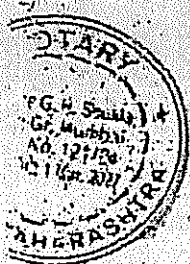


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H. B. NAMDARIAN (IRANI)
Sinhri Saubhari Chawl,
157, Worli Koliwada,
Worli, Mumbai-400 025.



11. In accordance with the provision of the section 9B of Income Tax Act 1961 the AOP is liable to pay capital gain tax based on the Fair Market Value of immovable properties owned by the AOP as on the date of dissolution. The working of the capital gain tax payable is particularly computed and annexed hereto at Annexure - G.
12. As a result of the demise of Mr. Pascoal A. Trindade, all the assets and liabilities of the AOP stand transferred to new entity viz proprietary firm Shivam Holiday Home with surviving associate member of the AOP as proprietor.
13. In the above stated circumstances, the AOP - Shivam Holiday Home (PAN.No. AACAS6043C) stand dissolved.
14. The accounts of the AOP for the period upto the closure of the said business till the date (30-06-2023) of dissolution have been made up and a certified copy of the Balance sheet is annexed hereto as Annexure - F.
15. The surviving associate shall make
- (i) repayment of amounts payable by AOP to its creditors/depositors as reflected in the Balance sheet annexed hereto at Annexure - F
 - (ii) payment of statutory charges, dues, taxes, fines etc. to statutory authorities in relation to assets from the movable and immovable assets which have devolved as a result of dissolution.



CERTIFIED TRUE COPY

H. B. NAMDARIAN (IRANI)
Sindhi Sahneri Chawl,
157, Worli-Korwada,
Worli, Mumbai-400 025.



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16. The surviving associate shall, in the event of sale of the properties and/or any part thereof as set out in Fourth Schedule, pay the share of demised Associate member late Mr. Pascoal Trindade to his legal heirs proportionately and in any case not later than 1/03/2024 subject only to full and final settlement.

17. The surviving associate hereby declare and confirm that:

- i) he has not at any time borrowed any money or incurred any debts for and on account of or on behalf of the said AOP.
- ii) there are no liabilities / payments required to be made by the AOP or associate members save and except those liabilities that are reflected in Balance sheet annexed hereto at Annexure - F.
- iii) income tax, service tax, GST returns of the said AOP have been compiled and filed till the A.Y. [2023-24]
- iv) shall give due intimation of the dissolution of the said AOP to concerned authorities and make necessary application for change in the land records to reflect the correct ownership status of the said immovable properties.
- v) shall make necessary applications to the concerned authorities for reflecting the dissolution in their records.
- vi) he do hereby indemnify and keep indemnified the legal heirs of late Mr. Pascoal Trindade in respect of forever.



CERTIFIED TRUE COPY

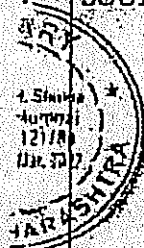
H. B. NAMDARIAN (HANI)
Sindhi Sadhora Chawl,
157, Worli Koliwada,
Worli, Mumbai-400 025.



FIRST SCHEDULE

All that piece and parcel of land admeasuring 610 sq. meters or thereabouts, being Plot no. 5 (five) of the subdivision of property formed by the amalgamation of two properties viz. (1) 'Second Cunto Chinchecho' described in the Land Registration Office of Ilhas Under No. 17082 of Book B-45, New and (2) 'Terceiro Cunto Chinchecho' also known as Terceiro Cunto Chinchecho Com. Seu Alto De Area da propriedade Bailly Vally described in the Land Registration Office of Ilhas at Panji under no. 2671, Book B 30, Old, Surveyed under Chalta No. 16 of P.T. Sheet No. 99 of City Survey of Panji, with a bungalow or house standing thereon situated at Miramar/Santa Inez, within the limits of the Panji Municipal Corporation of Panji City, within registration of Sub-District of Ilhas, District of Goa (North-Goa) and State of Goa. The said built up plot with its dimensions and shape is shown in the Plan annexed hereto by Red colour boundary line and is bounded as follows:

NORTH	Gasper dias Road now Dayanand Bandodkar Road as also portion of Plot No. 6 surveyed under Chalta No. 19 of Campal Housing colony.
SOUTH	10 meters wide road of campal housing colony as also portion of plot no. 11 surveyed under chalta no. 17 of Campal Housing Colony.



CERTIFIED TRUE COPY

SH. E. LIA. DASTAN (FRANK)
 District Engineer, Survey,
 151, Lashmi Kowada,
 Worli, Mumbai-400 025.



EAST	Portions of plot nos. 6, 12 and 11 surveyed under Chalta Nos. 19, 18 and 17 respectively of Campal Housing Colony and
WEST	Gaspar Dias Road now Dayanand Bandodkar Road as also 10 meters wide road of Campal Housing Colony;

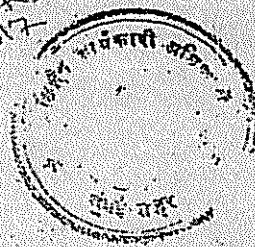
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CERTIFIED TRUE COPY

H. B. HAMOASIAN (IBANI)
 Sinchi Sakheri Chawl,
 157, Worli Koliwada,
 Worli, Mumbai-400 025.

[Handwritten signature]



ANNEXURE R1 A

59

From
Mr Riva Trindade,
Dona Paula,
Tiswadi,
Goa 403004.

To,
Mr. Vikram Shah,
28 Capri 9
Manav Mandir Road
Mumbai 400005

Subject: Request to furnish the Copies of Incorporation of Company documents, Sale deeds and Financial Documents.

1. Mr. Riva Trindade being the legal heir of Late Mr. Pascoal Trindade, who is the stakeholder in various companies and AOP's in the capacity as director and partner and also has vested interest in joint venture agreements signed with various parties, the list of various companies and AOP's, are mentioned herein below;

- where
to
PUM
- a) Paramount Buildwell Construction Pvt Ltd. (Ocean Park Project)
 - b) Paramount Buildwell Construction Pvt Ltd (Emperor's Boulevard Project)
 - c) Pravar Trade Invest Pvt Ltd.
 - d) Pastina Holiday Home Pvt Ltd.
 - e) Shivam Holiday Home

In order to understand the financial status and other documentations of various entities as listed above and as discussed with you on 28.02.2023 at Bambolim office and it was finalized that you shall provide the copies of necessary documents, so that we both could finish the settlement terms.

- Balance Sheets and Profit and Loss account audited up to date of above entities.
- All Bank Statements from the date of incorporation of above entities till date.

In view of above, I request you to provide me with the copies of following documents within a period of 15 days from the date of this letter.

With Warm Regards,


Riva Trindade

18th March 2023

ANNEXURE R1 B 60
Copy

By Hand Delivery / Recd A-D

From ;
Vikram Shah
Capri, 9, Manav mandir Road,
Malbar Hill, Mumbai 400006
Date : 30/03/2023

To
Mr. Riva Trindade
Palbrika Mansion, Near Rosary School,
Dona Paula, P.O. NILE, Goa 403004

Sub: Response to your communication dated 18-03-2023.

Dear Riva,

Although much delayed, I welcome your unaddressed communication received by office at Bambolim, Goa by hand delivery through your staff.

Before specifically replying to your communication, it is imperative to place on record viz a viz efforts by, besides me, Mr. Ram Daryanani, Mr. Kumar Vidhan, Mr. Nazreth Soares, Mr. Hemkant Bhangui to persuade you to co-operate and conclude the unfinished business left by your father in respect of several joint commercial ventures have remained non conclusive.

- 1) Please note that in the meeting dated 28/02/2023, I had clearly stated to appoint two mediators, one by me and one by you with clear mandate by both of us to accept the "award" given by them and conclude the matters in time bound period.

However, in response I have received the subject communication requesting for various documents.

- 2) Now specifically responding to your communication dated 18/03/2023 please note the following -

- i) Paramount Buildwell Construction Pvt. Ltd. is only one company and not two as you have mentioned.
- ii) You have forgotten to mention or have deliberately not mentioned the name of the AOP viz PVM Associates.
- iii) The details of the company viz n viz status and % shareholding /partnership of Late Mr. Pascoal -

Name of the Entity	Status	Date of Incorporation	% Share holding of Mr. Pascoal	Registered office address
Paramount Buildwell Construction Pvt. Ltd.	Pvt. Ltd.	18-04-2005	25	Block - B, Wankhede Stadium, D Road, Churchgate, Mumbai - 400 020
Pastina Holiday Home Pvt. Ltd.	Pvt. Ltd.	22-12-1995	50	Pastina Villa, Dona Paula Circle, Panaji, Goa OA 403006
Pravar Trade Invest Pvt. Ltd.	Pvt. Ltd.	24-01-1997	Nil	Block - B, Wankhede Stadium, D Road, Churchgate, Mumbai - 400 020
Shivam Holiday Home	AOP	17-09-2005	50	Pastina Villa, Dona Paula Circle, Panjim, Goa
PVM Associates	AOP	01-04-2013	37.85	Ocean Park Residency, Opp. NIO colony, Dona Paula, Panaji, Goa

As your father was looking into the day to day transactions of all the companies and was authorized signatory singularly to transact and execute all the businesses / documents many of the important files / documents were with him and the same are to be traced.

- 3) Further, you are requested to obtain the succession certificate, if not obtained till date, and furnish the copy of the same along with attested copies of death certificate to the respective company / AOP's chartered accountants / company Secretary enabling them to carry out the necessary formalities for transfer/winding up.

4) I once again request and reiterate that the time bound mediation by two mediators one appointed by each of us with a mandate to accept the verdict given by them is the only solution to close the matters pending for long.

5) Under the circumstances and premises as above your request for submitting the balance sheets/ bank statement of all the companies from the date of its inception is uncalled for. But However forwarding to you soft copies (pen drive) of the last audited balance sheets for the companies AOPs.

Hope you will do the needful at the earliest for the mutual benefit of our respective families.

Kindly acknowledge the receipt of the letter alongwith pendrive.

Thanking,

Vikram Shah

Encl. pen drive

C.c. 1. Adv. Hemkant Bhargui

2. Adv. Ratnak Rao

3 Adv. Harshad Bhadbade

Note: Postina Holiday Home Pvt. Ltd Audited
Balance Sheet is with you.

ANNEXURE R1C

63

BY REGD A.D.

From : Mr. Riva Trinidade
Dona Paula,
Tiswadi, Goa.
403 001.

Date : 12th Apr, 2023.

To,
Mr. Vikram Shah,
28, Capri 9,
Manav Mandir Road,
Malabar Hill,
Mumbai, 400 006

Ref : 1. My letter dated 18/03/2023 addressed to you.
2. Your communication dated 30/03/2023.

Sub : Reply to your above-referred communication dated 30/03/2023.

Dear Mr. Shah,

I am in receipt of your above-referred communication dated 30/03/2023 and in reply thereto would like to reply to you as under:

At the very outset, I reiterate my request made in my earlier letter dated 18/03/2023 for the Accounts and Bank Statements of the private limited companies and the AOP's as stated in my said letter and the repetition of the contents are avoided herein for the sake of brevity.

In specific regard to your above-referred communication dated 30/03/2023, the contents thereof are duly noted, I am however astonished to note that instead of furnishing the requested documents / details, you propose mediation. Though my knowledge of law is limited, you will appreciate that mediation requires that there be a dispute, and to the best of my knowledge, there is presently no dispute between us, unless you consider it otherwise.

Secondly, you will also appreciate that the Audited Accounts and Bank Statements of the private limited companies and the AOP's since inception (as requested by me) are important documents to understand and comprehend the financial position of the private limited companies and the AOP's, moreso when the said private limited companies and the AOP's contain substantial and significant investments made by my

late father, and hence my request for the same is very much a valid and proper request and by no stretch of imagination be termed as "uncalled for" and dismissed at your end.

Further, it is noted that while on one hand you request me to provide the copy of, "succession certificate, death certificate to the respective company / AOP's Chartered accountants / Company Secretary enabling them to carry out the necessary formalities for transfer / winding up", on the other hand you refuse / deny my request for the Audited Accounts and Bank Statements of the private limited companies and the AOP's, which are the very document forming the foundation of such transfer / winding up.

Be that as it may, without delving more into the contentions made in your above referred communication, which clearly appears to be based on assumed facts and/or unfounded advice, I reiterate the request made in my earlier letter dated 18/03/2023 and once again urge and request you to provide the Audited Accounts and Bank Statements of the Private limited companies and the AOP's (as requested) without any further delay, so that things can move forward.

I do hope that you will see reason in my request, and oblige.

Warm Regards

Mr. Riva Trinidad

ANNEXURE R1D

65

BY REGD A.D.

From : Mr. Riva Trindade
Dona Paula,
Tiswadi, Goa.
403 001.

Date : 4th July, 2023

To,
Mr. Vikram Shah,
Block B, Wankhede Stadium,
D Road, Churchgate
Mumbai 400020,
Maharashtra

Ref : 1. My letter dated 18/03/2023 addressed to you.
2. Your communication dated 30/03/2023 and 01/04/2023.
3. Your communication dated 23/06/2023.

Sub : Joint Reply to your above-referred communications.

Dear Mr. Shah,

I am in receipt of your above-referred communication dated 30/03/2023, 01/04/2023 and 23/06/2023 and would like to reply to you as under:

At the very outset, I reiterate my request made in my earlier letter dated 18/03/2023 for the Accounts and Bank Statements of the Private Limited companies and the AOP's as stated in my said letter and the repetition of the contents are avoided herein for the sake of brevity.

You have for reasons best known to you avoided disclosing the Accounts and Bank Statements of the Private Limited companies and the AOP's to me till date leaving me with no option but to consider exploring available options to me

including legal options and hence the delay in responding to your above referred communications.

Nevertheless, with specific regard to your above-referred communication dated 30/03/2023, the contents thereof are duly noted, I am however astonished to note that instead of furnishing the requested documents / details, you propose mediation. Though my knowledge of law is limited, you will appreciate that mediation requires that there be a dispute, and to the best of my knowledge, there is presently no dispute between us, unless you consider it otherwise.

Secondly, you will also appreciate that the Audited Accounts and Bank Statements of the private limited companies and the AOP's since inception (as requested by me) are important documents to understand and comprehend the financial position of the private limited companies and the AOP's, more so when the said private limited companies and the AOP's contain substantial and significant investments made by my late father, and hence my request for the same is very much a valid and proper request and by no stretch of imagination be termed as "uncalled for" and dismissed at your end.

Further, it is noted that while on one hand you request me to provide the copy of, "succession certificate, death certificate to the respective company / AOP's Chartered accountants / Company Secretary enabling them to carry out the necessary formalities for transfer / winding up", on the other hand you refuse / deny my request for the Audited Accounts and Bank Statements of the private limited companies and the AOP's, which are the very document forming the foundation of such transfer / winding up.

Still further, for the sake of assumption, even for me to consider your proposition of "mediation", you will appreciate, that the Audited Accounts and Bank Statements of the private limited companies and the AOP's are the fundamental documents without which no reasoned decision can be arrived at.

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Additionally, with specific regards to your above-referred communication dated 23/06/2023, the same was recently received by me and is being replied to without delay.

First and foremost the contents thereof are duly noted, however it is astonishing to note that you are requesting for the Succession Certificate to submit the same to the Chartered Accounts for further compliance, when you are avoiding disclosing to me the Audited Accounts and Bank Statements of the Private Limited companies and the AOP's requested by me, which are the very documents required to access the business and financial position of said Private Limited companies and the AOP's, only after which the I can be in an informed position to address the issue of further compliance as regards to these entities, which I am sure you will understand .

Be that as it may, without delving more into the contentions made in your above referred communications, which clearly appears to be based on assumed facts and/or unfounded advice, I reiterate the request made in my earlier letter dated 18/03/2023 and once again urge and request you to disclose /provide to me the Audited Accounts and Bank Statements of the Private Limited companies and the AOP's (as requested) without any further delay, so that things can move forward.

I do hope that you will see reason in my request, and oblige.

Warm Regards



Mr. Riva Trindade

ANNEXURE RIE

68

From ;
Vikram Shah
Capri, 9, Manav mandir Road,
Malbar Hill, Mumbai 400006
Date : 14/07/2023

REGD A.D.

To

Mr. Riva Trindade
Palbrika Mansion, Near Rosary School,
Dona Paula, P.O. NIL, Goa 403004

Sub: Your letter dated 04/07/2023.

Dear Riva Trindade,

Responding to your letter dated 04.07.2023 duly received on 11.07.2023.

At the outset, I am delighted to receive your communication which will enable us to go forward and conclude the matters pending for long.

Prime facie I disagree with your contention about, avoiding of disclosing of accounts, wherein in fact the audited accounts for the following entities for the financial year 2021-22 were submitted along with the communication dated 30/03/2023, which has been acknowledged. However, despite more than 3 months having passed I have not heard from you anything relating to this. The audited accounts and Balance Sheets for the current financial year shall be forwarded upon filing of respective Income Tax Returns.

In my communication, I had also specifically provided the details of commercial Ventures and the stake of your father in each of them although the same details were given many time before.

As you are well aware that all the Commercial Ventures by and between myself and your late father were based at Goa and all were manage and handled by your father being a Local Partner / Director and the records were also maintain at Goa office and I was broadly aware the transactions due to regular telephonic communication by and between me and your father.

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Further almost all the documents / agreements etc. including cheques were singularly signed /executed by your father till his Demise.

As for the transactions after the demise of your father all the records are maintained at Goa office and you may avail any specific details require from Goa office and communicate with me for any specific details.

Further if you have any query you may approach the respective Chartered Accountants /Advocates along with your Chartered Accountant / Advocate either personally or telephonically.

I further acknowledge that, as stated in your letter, there is no dispute, but however, conclusion of the matters are pending which is the cause of my anxiety due to my age and also my apprehension that it will be difficult to safeguard/salvage our mutual interest due to delays and non-cooperation at your end as time is of essence in several of these ventures/commitments and all the joint efforts and reputation built by your late father and me will be wasted.

It is very strange that you are inquiring as to the need of the mediator as there is no dispute by and between us. Looking at the following narration it is always you who have approached the mediator from time to time but without giving any mandate for accepting their verdict.

I hope you will appreciate that I have tried my best to explain the nature of business activities and the manner which the unfinished business can be concluded to all the persons /mediators suggested by you but somehow you did not heed to any of their inputs.

It is necessary and pertinent to put on record the following facts to narrate the efforts by me besides Mr. Ram Daryanani, Mr. Kumar Vidhani, Mr. Harshad Bhadbhade, Mr. Raunak Rao, Mr. Bhangui to persuade you to co-operate and conclude the unfinished business left by your late father in respect of several joint commercial ventures.

- 1) After the demise of your father on 17th January, we had our first meeting in the last week of January 22 with you in presence of Mr. Dias, Manager of the various business activities and close associate of

your father Late Mr. Pascoal during his last two years and one Mr. Jimmy Fernandes at the Miramar office wherein you were explained the status and commercial aspects of the various joint business Activities by and between myself and your father and also provided you with the details through Mr. Dias. Further myself had categorically informed that owing to the age factor and family request I desire to wind up all the business activities at Goa and seeking for your co-operation for the same.

- 2) Another meeting between us took place after approximately 15 days of the above meeting at the site office at Bambolim in presence of Mr. Ram Daryanani, and Mr. Kumar Vidhani both being very close and dear friends and well wishers of late Mr. Pascoal. The meeting was specially held to explain to you about financial consequences of excess withdrawal by your father late Mr. Pascoal in one of the company M/s. Paramount Buildwell Construction Pvt. Ltd. However, you ignored the advice of all and has not done anything in respect thereof till date and there is no communication from you on this account.
- 3) Somewhere in the month of May /June 2022 one Mr. Wilbur Menezes (Advocate) through a close business associate Mr. Rajan Bhavnani approached me at your instant. Mr. Wilbur in presence of Mr. Rajan Bhavnani stated that you had approached him to understand and resolve certain of your doubts viz. Business activities by and between myself and by your father late Mr. Pascoal. I accepted his request and furnished to him the certain details with the further request to Mr. Wilbur to obtain written mandate from you to conclude the matters as finalized by him. However, it, was informed by Mr. Wilbur that you were not agreeable for giving written mandate although I, had agreed to give the mandate. The matter remained inconclusive as Mr. Wilbur informed Mr. Bhavnani that you have stopped responding to his calls / messages. Again, there has been no communication from you as to why you refused to give a formal mandate after approaching Mr Bhavnani with a request to resolve and conclude the matters between us.

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- 4) Myself along with my wife Mrs. Varsha shah had meeting with your entire family ie. Your mother Mrs. Albertine Trindade and your wife Mrs. Karita Tridnade at your residence at Dona Paula. Once again in the said meeting all the present were explained by me the status of various business / properties and also explained that the time is of essence for several commitments made by me and your late father Mr Pascal, otherwise it will cause a great deal of monetary losses not only to us but also to associated persons without any fault of theirs. However there has been no communication/response from you.
- 5) A common friend and the lawyer, Mr. Harshad Bhadbhade who had defended us in various litigations filed by the components of comunidade of Bambolim before the High Court and Supreme Court in respect of jointly owned properties viz. survey no. 93/2, 93/3 & 93/4 at village Bambolim, had several meetings with you and explained to you to conclude the matters at the earliest for the common interest.
- 6) At the request of Mr. Harshad, I handed over my 50% shares, my resignation from directorship in one of the company M/s. Pastina Holiday Home Pvt. Ltd. without receiving any consideration in respect thereof to initiate the process of winding up. But however, the move failed to avail any positive response from you. As a matter of fact in spite of explaining you refused even to sign the balance sheet of the company resulting into regulatory non compliance of non filing of ROC returns in time for the first time since the inception of the company.
- 7) Further the Advocate Mr. Raunak Rao, who is locally representing our various companies as well as your late father in his personal matters for the court matters for more than last 12 years, due to non - cooperative attitude of you sent message that he do not want to continue to represent us and wants to withdraw himself. Upon receiving such message you along with one Mr. Nazreth, being uncle of your wife met Mr. Raunak at his office wherein upon discussion

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- 4) Myself along with my wife Mrs. Varsha Shah had meeting with your entire family ie. Your mother Mrs. Albertine Trindade and your wife Mrs. Karita Trindade at your residence at Dona Paula. Once again in the said meeting all the present were explained by me the status of various business / properties and also explained that the time is of essence for several commitments made by me and your late father Mr. Pascol, otherwise it will cause a great deal of monetary losses not only to us but also to associated persons without any fault of theirs. However there has been no communication/response from you.
- 5) A common friend and the lawyer, Mr. Harshad Bhadbhade who had defended us in various litigations filed by the components of comunidade of Bambolim before the High Court and Supreme Court in respect of jointly owned properties viz. survey no. 93/2, 93/3 & 93/4 at village Bambolim, had several meetings with you and explained to you to conclude the matters at the earliest for the common interest.
- 6) At the request of Mr. Harshad, I handed over my 50% shares, my resignation from directorship in one of the company M/s. Pastina Holiday Home Pvt. Ltd. without receiving any consideration in respect thereof to initiate the process of winding up. But however, the move failed to avail any positive response from you. As a matter of fact in spite of explaining you refused even to sign the balance sheet of the company resulting into regulatory non compliance of non filing of ROC returns in time for the first time since the inception of the company.
- 7) Further the Advocate Mr. Raunak Rao, who is locally representing our various companies as well as your late father in his personal matters for the court matters for more than last 12 years, due to non-cooperative attitude of you sent message that he do not want to continue to represent us and wants to withdraw himself. Upon receiving such message you along with one Mr. Nazareth, being uncle of your wife met Mr. Raunak at his office wherein upon discussion

amongst you all Mr. Raunak called upon me for joint meeting at his office on the next day to which I readily agreed and travelled from Mumbai specifically for the proposed meeting.

- 8) On the day of the meeting you called me saying that you do not want to have the meeting at the office of Mr. Raunak as decided but would like to meet at your office at Dona Paula and without presence of Mr. Raunak. After initial hesitation I said that I will discuss the matter with Mr. Raunak and decide and accordingly I called Mr. Raunak to inform about your reluctance for the meeting at his office. Mr. Raunak told me to hold the meeting without him being present as it was more important to resolve the issues than personal egos.
- 9) I along with Mr. Shekhar Patki, my son-in-law, came to the your office wherein Mr. Nazreth was also present. During the discussion I again requested you to atleast sign the balance sheet of M/s. Pastina Holiday Home Pvt. Ltd. to avoid regulatory non compliance and any penal consequences for not filing the same in time. You stated that you were not signing the same because according to you my credit balance is Rs. 40 lacs viz a viz the credit balance of your father being far less. I asked you to get the balance sheet and verify the facts to which you said that the balance sheet is lying at your home. You were requested by all to get the same and verify the correctness. You went home and returned back empty handed saying that you could not tress it. The matter of fact is that the balance sheet was wrongly read by you but in spite of the same you have till date not signed the same. This again demonstrates your lack of co-operation without appreciating the consequences of it.
10. During the meeting with Mr. Raunak you were also requested to sign an Application to be filed before the High Court for extension of time limit which also you refused to sign without assigning any reason. One more example of non co-operation by you without assigning any reason.

11. It is pertaining to note here that due to ROC directive your father was disqualified to be Director in any of the companies and therefore he had appointed you as an additional Director in his place in the companies viz. Paramount Buildwell Construction Pvt. Ltd., Pastina Holiday Home Pvt. Ltd. etc but had not incorporated you in AOPs viz M/s. Shivam Holiday Home and PVM Associates.
12. Pursuant to the meeting at your office, me and Mr. Patki met Mr. Nazreth at his work place in Mumbai to persuade to you to conclude the matters as discussed. However, Mr. Nazreth informed that he had offered to you the services of his CA in Mumbai but you did not communicate with him too and therefore he expressed his helplessness in the matter. All the efforts made vide those meeting did not produce any conclusion due to your non cooperation
13. Due to the aforesaid events and Mr. Raunak not willing to represent you in various of your personal matters, you then approached Advocate Mr. Hemkant Bhangui being advocate and a very good friend of your late father to assist and help you to resolve your confusions and matters.
14. Although Mr. Bhangui is not practicing at Panaji and also very busy in his own practice but for the sake of his old friendship with your late father and family agreed to mediate and accordingly called me for meeting at his office at village "Curchorem" being 60 kilometer away from Panaji.
15. Being willing, I readily agreed for the meeting and the mediation by Advocate Mr. Bhangui as he is aware of most of the business transactions by and between me and your father.
16. The meeting at the Advocate Bhangui's office was at your behest and Mr. Bhangui explained to you in details viz a viz the business activities

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and the brotherly relation between your late father and me. You had raised several queries in the meeting which were very properly explained and it appeared to me and to Mr. Bhangui that you would conclude the matters under his advice and guidelines.

17. Upon query by Mr. Bhangui you expressed your desire to retain some of the common properties/ assets viz. chiplun property (joint venture), Pastina Holiday Home and guest house at Bambolim to which I consented and accepted to appropriate the consideration thereof against the other properties / assets to be retained by me. It was further decided to prepare documentation in respect thereof and to handover the executed documents to Mr. Bhangui to be kept in Escrow until the finalization of the account/ payment of consideration to each other as the case may be.
18. Advocate Bhangui also in the same meeting inquired with you that "has your father has made any WILL" and if not it is very necessary for you to obtain succession certificate as the same shall be required to effectively transfer of assets /properties in the name of the successor. You had categorically stated that you have initiated the process of obtaining the succession certificate and shall forward the copy as and when the same is received. To best of my knowledge till that there is no progress in respect thereof.
19. On conclusion of the meeting Advocate Bhangui said that he will prepare an MOU containing the terms of settlement as discussed and the same will be executed by you and myself and shall be kept in escrow with Mr. Bhangui till the finalization of accounts.
20. Advocate Bhangui also requested you to approach and apologies Mr. Raunak and handover all the matters back to him and he will also personally request Mr. Raunak to represent you and also informed you to execute documents as forwarded by Mr. Raunak forthwith save and

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except any commercial document. To best of my knowledge you have ignored his advice.

21. After couple of days on enquiry by me with Advocate Bhangui, Advocate Bhangui said that you are not responding to his calls and messages and therefore he cannot and does not desire to pursue the matter further. But however, he has prepared the MOU as discussed and the print copy of which I have handed over to you on 28/03/2023 to conclude the matters accordingly. Again, example of lack of cooperation from you.
22. Failing to understand your approach/ attitude and non cooperation with every person viz Mr. Ram Daryanani, Mr. Kumar Vidhani, Mr. Harshad Bhadbhade, Mr. Raunak Rao, Mr. Bhangui and not concerned about regulatory non-compliance, I lost the hope and had left the matters to the destiny but however due to insistence of one Mr. Rahul Shah, also being stake holder and affected party, I agreed for meeting with you along with one of the associate of Mr. Rahul Shah, also your cousin viz. Mr. Agnelo and accordingly meeting was held between myself, you, Mr. Ram Daryanani and Mr. Agnelo at Bambolim office on 28-02-2023 but the matters still remain unconclusive due to your non cooperation.
23. I reiterate your non-cooperation to commitments made by me and your late father and by insisting for records from the date of inception of the entities whose transactions as well as accounts have been signed by your late father as a working partner/director is uncalled for as this is resulting in to monetary as well as reputation loss to me, you/your late father as well as people to whom we (me and your late father) have made commitments
24. I sincerely hope that you would have participated in the business activities along with your father, as per his wish, which would have helped us as well yourself and we would have smoothly concluded

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business activities and both our respective families would have been benefited mentally as well as financially.

25. I do hope that you will realize the situation and shall co-operate to conclude the pending business for mutual benefits/interest of our respective families.

26. As I once again say that it shall be very difficult for me and my family to safeguard/salvage the benefits resulting out of our joint efforts for past 25 year in the event of continued noncooperation at your end.

Thanking you

Sd/-

Vikram Shah.

ANNEXURE R1-F

14/2013

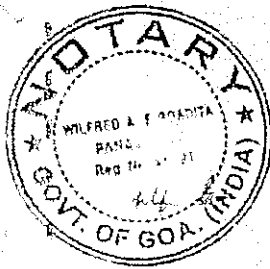
77



गोवा GOA

Serial No. 176 Place of Vendor, Panaji Date 14/4/2013
Value of Stamp Paper _____
Name of Purchaser _____
Residence _____ Name of Farmer _____
Purpose _____ Transacting Parties: _____

332919



Sign of Stamp Vendor
Mangala K. K. K. K.
License No. NOTARY/2013/176

Sign of Purchase



ARTICLES OF ASSOCIATION

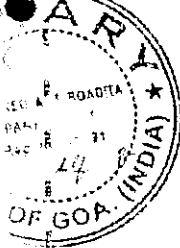
THESE ARTICLES OF ASSOCIATION made this 1st day of April in
the year Two Thousand Thirteen

[Handwritten signature]

78



गोवा GOA



Serial No. 111 Place of Vendor, Panaji Date 11/11
Value of Stamp Paper _____
Name of Purchaser _____
Residence _____ Name of Seller _____
Purpose _____ Transacting Parties _____

332921

Sign of Grant Vendor
Mangala H. Inglekar
License No. AG/1/PV/26147-47/99

Sign of Purchaser

BETWEEN

1. MR. PASCOAL TRINDADE, son of late Agostinho Trindade, aged about 71 years, married, businessman, Indian Inhabitant and having his office near N. I. O., Dona Paula, Goa, hereinafter referred to as the Party of the FIRST PART (which expression shall unless repugnant to the context or meaning thereof, mean and include his wife Smt. Albertina Trindade, legal heirs, executors and administrators);



2. **MR. VIKRAM SHAH**, son of Chinubhai Shah aged about 63 Years, Indian Inhabitant residing at 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, 400006 hereinafter referred to as the Party of the **SECOND PART** (which expression shall unless repugnant to the context or meaning thereof, mean and include his legal heirs, executors and administrators);

MR. MURLIDHAR SADARANGANI, son of Shamdas Jetaram Sadarangani aged about 54 Years, Indian Inhabitant residing at S-3, Eden Hall, Dr. Annie Besant Road, Worli, Mumbai - 400018, hereinafter referred to as the Party of the **THIRD PART** (which expression shall unless repugnant to the context or meaning thereof, mean and include his legal heirs, executors and administrators);

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WHEREAS By the Deed of Sale dated 25th April 2006 registered with the Sub- Registrar of Assurances at Ilhas, District of North Goa under serial no. 1170 dated 02.05.2006 made by and between MRS. DIONISIA DIAS E MERGULHAO alias MRS. DIONISIA DIAS therein referred to as the Vendor of the One part and MR. PASCOAL TRINDADE the Party of the First Part herein, therein referred to as the Purchaser of the Second Part, the Vendor therein conveyed and transferred unto the Purchaser therein (the party of the First part herein) all that piece and parcel of land bearing S. no. 93/3 situated at BAMBOLIM known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR" admeasuring about 26825 Sq. mtrs. within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka Tiswadi, Registration sub-Districts of Ilhas, District of North Goa, more particularly described in the Schedule I hereunder written (for sake of brevity, hereinafter referred to as "Schedule I Property") at or for the consideration therein paid by the Purchaser therein to the Vendor therein;

WHEREAS By the Deed of Sale dated 25th April 2006 registered with the Sub- Registrar of Assurances at Ilhas, District of North Goa under serial no. 1170 dated 2-5-2006 made by and between MRS. DIONISIA DIAS E MERGULHAO alias MRS. DIONISIA DIAS therein referred to as the Vendor of the One part and MR. PASCOAL TRINDADE the Party of the First Part herein, therein referred to as the Purchaser of the Second Part, the Vendor therein conveyed and transferred unto the Purchaser therein (the

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party of the First part herein) all that piece and parcel of land bearing S. no. 93/4 situated at BAMBOLIM known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR" admeasuring about 35075 Sq. mtrs. within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka Tiswadi, Registration sub-Districts of Ilhas, District of North Goa, more particularly described in the Schedule II hereunder written (for sake of brevity, hereinafter referred to as "Schedule II Property") at or for the consideration therein paid by the Purchaser therein to the Vendor therein

(For the sake of brevity, the properties described in the Schedule I and the Schedule II written hereunder are hereinafter collectively referred to as the "said Properties")

WHEREAS the Parties of the Second Part and Third Part approached the Party of the First Part with a proposal to develop the said Properties by pooling in their resources together;

WHEREAS the parties hereto felt that if their resources are pooled together, they can be put to greater common advantage and accordingly party of the Second & Third part advanced a sum of Rs.71,00,000/- and Rs.68,50,000/- respectively to the party of the First part from time to time for the purpose of obtaining various clearances / sanctions / NOCs / license and payment towards legal and professional charges.

WHEREAS the parties hereto, after mutual discussions have agreed to associate together to form an Association of persons with a view to earn income from development and or sale of the Schedule - I and II properties and that they shall not form a partnership; and

WHEREAS the parties hereto deem it expedient to reduce the terms governing their association into writing;

AND WHEREAS it is agreed that the terms and conditions unless otherwise changed by execution of a fresh deed of articles of execution or execution of addendum to this deed of Articles of Association in writing and duly signed by all the members shall be as follows:

